

26NNCV02799 26NNCV02799

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-27

Motion: DEFENDANT ERIC CHAGHOURI, M.D.'S DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 26NNCV02799 Hearing Date: August 27, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RONDA SIZEMORE, et al.,

Plaintiff(s),

vs.

LEGACY
HEALING CENTER CALIFORNIA LLC, et al.,

Defendant(s).

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CASE NO.: 26NNCV02799

[TENTATIVE]

ORDER RE: DEFENDANT ERIC CHAGHOURI, M.D.'S DEMURRER
TO FIRST AMENDED COMPLAINT

Dept.

3

8:30

a.m.

August

27, 2026

I. INTRODUCTION

Plaintiffs

Ronda Sizemore, individually and in her capacity as the administrator of the estate of Jimmie Wayne Sizemore, Austin Sizemore, and Jimmie Tyler Sizemore (collectively "Plaintiffs"), filed this action on April 10, 2026.

Plaintiffs

filed the operative First Amended Complaint ("FAC") on June 9, 2026, asserting claims for wrongful death, survivorship, elder abuse, negligent hiring, retention, and supervision, unfair competition, and false advertising.

On

July 17, 2026, defendant Eric Chaghouri, M.D. ("Defendant") filed this demurrer to the FAC's Third Cause of Action for Survivorship and Fourth Cause of Action for Violation of the Elder Abuse and Dependent Adult Civil Protection Act ("EADACPA").

Plaintiffs

filed an opposition brief on August 14, 2026.

Defendant

filed a reply brief on August 18, 2026.

II. LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) "We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]" (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 ["the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

III. DISCUSSION

This action arises from the death of Jimmie Wayne Sizemore ("Sizemore") on September 7, 2025, at Legacy Healing Center, a drug rehab and detox facility. Plaintiffs allege that Decedent was a "dependent adult" who was accepted into the custody of Legacy Healing Center and Defendant was the physician directing/overseeing detoxification care at Legacy Healing Center. Defendant was allegedly negligent with respect to Sizemore's care planning and treatment, resulting in Sizemore's death.

A.

Fourth

Cause of Action for Violation of EADACPA

Defendant demurs to the Fourth Cause of

Action on the grounds that Plaintiffs do not adequately plead a custodial “caretaking” relationship. (Demurrer, p. 8.) Defendant contends that there are no facts showing that he controlled physical custody, provided supervision, or performed custodial functions distinct from medical decision-making. (Ibid.)

Plaintiffs allege that Defendant was

“the physician responsible for directing and overseeing [Sizemore]’s detoxification care” and Sizemore, as an “inpatient in a locked residential program ...depended on [Defendant] ... for the monitoring, assessment, and protection he could not provide for himself.” (FAC, ¶ 52.) Plaintiffs further allege that Defendant “assumed ongoing responsibility for attending to those basic needs, including responsibility for [Sizemore]’s monitoring orders, the assessment and modification of his care plan, and his safety during the detoxification process.” (Ibid.) Defendant allegedly breached his custodial duties and neglected him by: “failing to ensure that [Sizemore]’s vital signs were checked as ordered; failing to ensure that the visual safety checks required of detoxification personnel were performed, such that no one observed [Sizemore] for over nine hours before he was found dead; failing to reassess [Sizemore] using the CIWA scale at any time after his admission despite his documented and worsening withdrawal symptoms; and failing to modify [Sizemore]’s care plan or transfer him to a higher level of care despite his clear and documented need for one.”

In *Winn v. Pioneer Medical Group,*

Inc. (2016) 63 Cal.4th 148, the California Supreme Court clarified that the type of caretaking or custodial relationship that the EADACPA requires is “one where a party has accepted responsibility for attending to the basic needs of an elder or dependent adult.” (Id., p. 161.) A custodial relationship must involve more than casual or limited interactions and does not depend on the provider’s professional standing. (Id., p. 152.)

Here, Plaintiffs’ allegations that

Defendant assumed an “ongoing responsibility” to attend to Sizemore’s basic needs are merely legal conclusions. There are no specific facts establishing that Defendant had a relationship with Sizemore beyond that of a physician providing medical services at Legacy Healing Center. In *Frankland v. Etehad* (2025) 113 Cal.App.5th 503, 516, the Second Appellate District held that a physician does not automatically assume the requisite caretaking or custodial

relationship simply where a physician provides services to patients residing in a skilled nursing facility. In a footnote, the Frankland court acknowledged that “[t]he calculus may differ if the physician is involved in the management of the facility, but no such allegations were made.” (Ibid., n. 16.) Here, too, the FAC is devoid of any allegations that Chaghouri was involved in managing the Legacy Healing Center.

Accordingly, the demurrer to the Fourth Cause of Action is SUSTAINED.

B.

Third

Cause of Action for Survivorship

To state a survival claim, plaintiff must allege facts showing (1) a cause of action that accrued before death, (2) actual pre-death injury or loss cognizable under section 377.34, and (3) a viable legal theory against the defendant, supported by nonconclusory facts.

Defendant argues that Plaintiffs cannot plead a claim for survivorship because Plaintiffs’ elder abuse claim fails and there is no other theory for recovering pain and suffering damages sustained before Sizemore died.

However, the FAC also seeks economic losses incurred before Sizemore’s death, which are allowed pursuant to Code of Civil Procedure section 377.34(a), therefore the cause of action states a basis for recovery and the demurrer to the Third Cause of Action on this basis is overruled.

To the extent that Defendant argues Plaintiffs’ allegations are too conclusory, this argument is unpersuasive because Plaintiffs allege, in part, that Defendant negligently prepared a care plan and improperly prescribed medication which led to Sizemore’s death. (FAC, ¶ 39.) Defendant cites to no authority requiring allegations of professional negligence to be plead with greater particularity. (See Demurrer, p. 7.)

Last, Defendant argues that the Third Cause of Action is uncertain. A demurrer for uncertainty will be sustained only

where the complaint is so bad that the defendant cannot reasonably respond. (Code Civ. Proc., § 430.10, subd. (f).) Here, the Third Cause of Action is not so uncertain as to warrant sustaining Defendant's demurrer; as Defendant states in his reply brief, the Third Cause of Action "is not an independent claim" but is a "procedural vehicle." Furthermore, any ambiguities may be clarified through the discovery process. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

IV. CONCLUSION

The demurrer to the Third Cause of Action is OVERRULED.

The demurrer to the Fourth Cause of Action is SUSTAINED with 20 days' leave to amend.

Defendant to give notice.

Dated
this 27th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.